

Exhibit 3.2

Continuum Therapeutics, Inc.

Amended and Restated Certificate of Incorporation

Continuum Therapeutics, Inc., a corporation organized and existing under the laws of the State of Delaware, hereby certifies:

1. The name of the corporation is Contineum Therapeutics, Inc. The original name of this corporation was Versense Pharmaceuticals, Inc. The date of filing of the original Certificate of Incorporation of this corporation with the Secretary of State of the State of Delaware was October 1, 2007. An Amended and Restated Certificate of Incorporation was filed with the Secretary of State of the State of Delaware on July 13, 2012, and

Amendment was filed with the Secretary of State of the State of Delaware on May 22, 2018 to change the name of the corporation to Contineum Therapeutics, Inc. A Second Amended and Restated Certificate of Incorporation was filed with the Secretary of State of the State of Delaware on May 22, 2019. A Third Amended and Restated Certificate of Incorporation was filed with the Secretary of State of the State of Delaware on November 1, 2019. A Certificate of Ownership and Merger was filed on January 23, 2020 which had the effect of changing the name of this corporation to Contineum Therapeutics, Inc., a Certificate of Amendment was filed with the Secretary of State of the State of Delaware on March 16, 2020. A Certificate of Amendment was filed with the Secretary of State of the State of Delaware on August 31, 2020. A Fourth Amended and Restated Certificate of Incorporation was filed with the Secretary of the State of Delaware on February 8, 2021. A Certificate of Amendment was filed with the Secretary of the State of Delaware on April 11, 2021. A Second Amended and Restated Certificate of Incorporation was filed with the Secretary of the State of Delaware on April 11, 2023. A Second Amended and Restated Certificate of Incorporation was filed with the Secretary of the State of Delaware on November 1, 2023 which had the effect of changing the name of this corporation to Contineum Therapeutics, Inc. A Third Certificate of Amendment was filed with the Secretary of the State of Delaware on November 1, 2023. A Fourth Amended and Restated Certificate of Incorporation was filed with the Secretary of the State of Delaware on November 1, 2023.

2. This Amended and Restated Certificate of Incorporation, which restates, integrates and further amends the certificate of incorporation, has been duly adopted by the corporation in accordance with Sections 242 and 245 of the General Corporation Law of Delaware and has been adopted by the requisite vote of the stockholders of the corporation, acting by written consent in lieu of a meeting, in accordance with Section 228 of the General Corporation Law of the State of Delaware.

3. The certificate of incorporation of the corporation is hereby amended and restated in its entirety to read as follows:

FIRST: The name of the corporation is Contineum Therapeutics, Inc. (hereinafter called the “Corporation”)

SECOND: The address of the registered office of the Corporation in the State of Delaware is 1209 Orange Street, in the city of 19801, County of New Castle, and the name of the registered agent of the corporation in the State of Delaware at such address is N. Agents, Inc.

THIRD: The purpose of the Corporation is to engage in any lawful act or activity for which corporations may be organized under the General Corporation Law of the State of Delaware or any applicable successor act thereto, as the same may be amended from time to time (the “DGCL”).

FOURTH: The total number of shares of all classes of capital stock that the Corporation is authorized to issue is 230,000,000. 200,000,000 shares shall be a class designated as Class A common stock, par value \$0.001 per share (the “Class A Common Stock”), and 30,000,000 shares shall be a class designated as non-voting Class B common stock, par value \$0.001 per share (the “Class B Common Stock”). Any reference to “Common Stock” in any contract, agreement or otherwise to which the Corporation is a party, whether before or after the date of filing of this Certificate of Incorporation shall refer to Class A Common Stock, unless specific reference is made to the Class B Common Stock.

Subject to the rights of the holders of any series of Preferred Stock, the number of authorized shares of any of the Common Stock may be increased or decreased (but not below the number of shares thereof then outstanding) by the affirmative vote of the holders of a majority of the voting power of the capital stock of the Corporation entitled to vote thereon irrespective of the provisions of Section 242(b)(2) of the Delaware General Corporation Law. A vote of the holders of any of the Common Stock or Preferred Stock voting separately as a class shall be required thereon.

A. Common Stock. The powers, preferences and relative participating, optional or other special rights, and the qualifications, restrictions of the Common Stock are as follows:

1. Ranking. The voting, dividend and liquidation rights of the holders of the Class A Common Stock and Class B Common Stock shall be subject to and qualified by the rights of the holders of the Preferred Stock of any series as may be designated by the Board of Directors of the Corporation (the “Board”) upon any issuance of the Preferred Stock of any series.

2. Voting. Except as otherwise provided by law or by this Amended and Restated Certificate of Incorporation (as amended from time to time, including the terms of any Preferred Stock Designation (as defined below), this “Certificate of Incorporation”), the holders of one share of Class A Common Stock shall have the exclusive right to vote for the election and removal of directors and for all other purposes. One share of Class A Common Stock shall entitle the holder thereof to one vote on each matter properly submitted to the stockholders of the Corporation for their vote. Notwithstanding any other provision of this Certificate of Incorporation to the contrary, (i) the holders of Class A Common Stock shall be entitled to vote on any amendment to this Certificate of Incorporation that relates solely to the terms of one or more outstanding series of Preferred Stock if the holders of such affected series are entitled, either separately or together as a class with the holders of one or more other series of Preferred Stock thereon pursuant to this Certificate of Incorporation or the DGCL and (ii) the Class B Common Stock shall be non-voting except as may be provided by law and shall not entitle the holder thereof to vote on the election of directors at any time.

3. Dividends. Subject to the rights of the holders of one or more outstanding series of Preferred Stock, holders of shares of Class A Common Stock and Class B Common Stock shall be entitled to receive on a pari passu basis such dividends and distributions and other assets, cash, stock or property of the Corporation when, as and if declared thereon by the Board from time to time out of assets or funds of the Corporation legally available therefor.

4. Liquidation. Subject to the rights of the holders of one or more outstanding series of Preferred Stock, shares of Class A Common Stock and Class B Common Stock shall be entitled to receive on a *pari passu* basis the assets and funds of the Corporation available for distribution in the event of any liquidation, dissolution or winding up of the affairs of the Corporation, whether voluntary or involuntary. A liquidation or winding up of the affairs of the Corporation, as such terms are used in this Section A(4), shall not be deemed to be occasioned by a consolidation or merger of the Corporation with or into any other person or a sale, lease, exchange, exclusive license, conveyance or otherwise of all or any part of its assets.

B. Class B Common Stock. Each holder of shares of Class B Common Stock shall have the right to convert each share of Class B Common Stock held by such holder into one (1) share of Class A Common Stock at such holder's election by providing written notice to the Corporation. however, that such shares of Class B Common Stock may only be converted into shares of Class A Common Stock during such time as the conversion is immediately prior to or as a result of such conversion would not result in the holder(s) thereof beneficially owning (for purposes of Section 13(d) of the Securities Exchange Act of 1934, as amended and the rules and regulations promulgated thereunder (collectively, the "Exchange Act") aggregated with affiliates with whom such holder is required to aggregate beneficial ownership for purposes of Section 13(d) of the Exchange Act in excess of the Beneficial Ownership Limitation. The "Beneficial Ownership Limitation" means initially 4.99% of the Class A Common Stock. Each holder of Class B Common Stock may increase the Beneficial Ownership Limitation with respect to such holder upon 61 days' prior notice to the Corporation and may decrease the Beneficial Ownership Limitation at any time upon providing written notice of such election to the Corporation. provided, however, that no holder may make such an election to change the percentage with respect to such holder unless all holders of Class B Common Stock advised by the same investment advisor as such electing holder make the same election.

The effectiveness of any conversion of any shares of Class B Common Stock into shares of Class A Common Stock is subject to the satisfaction and termination of any applicable premerger notification and waiting period requirements of the Hart-Scott-Rodino Antitrust Improvement Act of 1976, as amended, and the rules and regulations promulgated thereunder.

C. Preferred Stock

Shares of Preferred Stock may be issued from time to time in one or more series. The Board is hereby authorized to provide for the issuance of Preferred Stock by resolutions from time to time for the issuance, out of the authorized but unissued shares of Preferred Stock, of one or more series of Preferred Stock without stockholder approval (except as otherwise expressly required by this Certificate of Incorporation), by filing a certificate of designation with the Secretary of State to the applicable law of the State of Delaware (any such certificate, a "Preferred Stock Designation"), setting forth such resolution and the terms of each such series, establishing the number of shares to be included in such series, and fixing the voting powers, full or limited, or no vote, of the shares of each such series, and the designation, preferences and relative, participating, optional or other special rights, and the qualifications, limitations and restrictions thereof, of the shares of each such series. The powers, designation, preferences and relative, participating, optional and other special rights, and the qualifications, limitations and restrictions thereof, of each series of Preferred Stock may differ from those of any and all other series of Preferred Stock then outstanding. The authority of the Board with respect to each series of Preferred Stock shall include, but not be limited to, the determination of the following:

- (a) the designation of the series, which may be by distinguishing number, letter or title;

(b) the number of shares of the series, which number the Board may thereafter increase or decrease (but not below the number of shares thereof then outstanding) without any vote of stockholders (except as otherwise expressly required by this Certificate of Incorporation);

(c) the amounts or rates at which dividends will be payable on, and the preferences, if any, of shares of the series, and whether such dividends, if any, shall be cumulative or noncumulative;

(d) the dates on which dividends, if any, shall be payable;

(e) the redemption rights and price or prices, if any, for shares of the series;

(f) the terms and amount of any sinking fund, if any, provided for the purchase or redemption of shares of the series;

(g) the amounts payable on, and the preferences, if any, of shares of the series in the event of any voluntary liquidation, dissolution or winding up of the affairs of the Corporation;

(h) whether the shares of the series shall be convertible into or exchangeable for, shares of any other class or series or any other security, of the Corporation or any other corporation, and, if so, the specification of such other class or series or such other security, exchange price or prices or rate or rates, any adjustments thereof, the date or dates at which such shares shall be convertible or exchangeable, and other terms and conditions upon which such conversion or exchange may be made;

(i) restrictions on the issuance or reissuance of shares of the same series or any other class or series;

(j) the voting rights, if any, of the holders of shares of the series generally or upon specified events;

(k) any other powers, preferences and relative, participating, optional or other special rights, and the qualifications, restrictions thereof, of each series of Preferred Stock,

all as may be determined from time to time by the Board and stated in the resolution or resolutions providing for the issuance of such Preferred Stock.

Without limiting the generality of the foregoing, subject to the rights of one or more series of Preferred Stock then outstanding, the resolution or resolutions for issuance of any series of Preferred Stock may provide that such series shall be superior or rank equally or be junior to any other series of Preferred Stock to the extent permitted by law.

FIFTH: This Article FIFTH is inserted for the management of the business and for the conduct of the affairs of the Corporation.

A. General Powers. The business and affairs of the Corporation shall be managed by or under the direction of the Board, except as otherwise provided by this Certificate of Incorporation or the DGCL.

B. Number of Directors; Election of Directors. Subject to the rights of holders of any series of Preferred Stock to elect directors, the number of directors of the Corporation shall be fixed from time to time by resolution of the majority of the Whole Board. For purposes of this Certificate of Incorporation, the term “Whole Board” will mean the total number of authorized directors, whether or not there exist any vacancies or authorized directorships. No decrease in the number of directors constituting the Board shall shorten the term of any incumbent director.

C. Classes of Directors. Subject to the special rights of holders of any series of Preferred Stock to elect directors, the Board shall be divided into three classes, designated Class I, Class II and Class III, and each class shall consist, as nearly as may be possible, of one third of the total number of directors so divided into classes. The Board is authorized to assign members of the Board already in office to Class I, Class II or Class III at the time such classification becomes effective.

D. Terms of Office. Subject to the special rights of holders of any series of Preferred Stock to elect directors, each director shall hold office until the expiration of the term for which he or she was elected, ending on the date of the third annual meeting of stockholders following the annual meeting of stockholders at which such director was elected. provided that each director initially assigned to Class I shall serve for a term expiring at the Corporation’s first annual meeting of stockholders held after the effectiveness of this Certificate of Incorporation; each director initially assigned to Class II shall serve for a term expiring at the Corporation’s second annual meeting of stockholders held after the effectiveness of this Certificate of Incorporation; and each director initially assigned to Class III shall serve for a term expiring at the Corporation’s third annual meeting of stockholders held after the effectiveness of this Certificate of Incorporation. provided, further, each director shall continue to serve as a director until his or her successor is duly elected and qualified, subject to his or her death, disqualification, resignation or removal.

E. Newly Created Directorships and Vacancies. Subject to the special rights of holders of any series of Preferred Stock, any vacancy in any directorship that results from an increase in the number of directors or any vacancy on the Board that results from the death, disability, disqualification or removal of any director or from any other cause shall be filled solely by the affirmative vote of a majority of the stockholders entitled to vote in the election of directors in office, even if less than a quorum, or by a sole remaining director, and shall not be filled by the stockholders. Any director elected to fill a newly created directorship shall hold office until the next election of the class to which such director shall have been appointed, and his or her successor is duly elected and qualified, subject to his or her earlier death, disqualification, resignation or removal.

F. Preferred Directors. During any period when the holders of any series of Preferred Stock have the special right to elect additional directors upon commencement and for the duration of such period during which such right continues: (i) the then otherwise total authorized number of directors of the Corporation shall automatically be increased by such specified number of additional directors, and the holders of such series of Preferred Stock shall be entitled to elect the additional directors so provided for or fixed pursuant to this Certificate of Incorporation; and (ii) each director elected pursuant to the Preferred Stock Designation establishing such series of Preferred Stock, whichever occurs earlier, subject to his or her death, resignation, disqualification or removal. Except as otherwise provided by this Certificate of Incorporation, whenever the holders of any series of Preferred Stock having the special right to elect additional directors are divested of such right pursuant to this Certificate of Incorporation, the office of all such additional directors elected by the holders of such series, or elected to fill any vacancies resulting from the death, disqualification or removal of such additional directors, shall forthwith terminate and the total authorized number of directors of the Corporation shall be reduced accordingly.

G. Removal. Subject to any special rights of the holders of one or more series of Preferred Stock to elect directors, any director may be removed from office at any time, but only for cause and only by the affirmative vote of the holders of at least 66 2/3% in vote of the outstanding stock of the Corporation entitled to vote thereon, voting as a single class.

H. Committees. Pursuant to the Amended and Restated Bylaws of the Corporation (the “Bylaws”), the Board may establish committees to which may be delegated any or all of the powers and duties of the Board to the full extent permitted by law.

I. Stockholder Nominations and Introduction of Business. Advance notice of stockholder nominations for election of directors to be brought by stockholders before a meeting of stockholders shall be given in the manner provided by the Bylaws.

SIXTH: Unless and except to the extent that the Bylaws shall so require, the election of directors of the Corporation need not be by ballot.

SEVENTH: To the fullest extent permitted by the DGCL as it now exists and as it may hereafter be amended, no director of the Corporation shall be personally liable to the Corporation or any of its stockholders for monetary damages for breach of fiduciary duty as a director. If the Corporation hereafter amends to authorize corporate action further eliminating or limiting the personal liability of directors, then the liability of the Corporation shall be eliminated or limited to the fullest extent permitted by the DGCL, as so amended. No amendment, modification or repeal of Article SEVENTH shall apply to or have any adverse effect on any right or protection of, or any limitation of the liability of, a director of the Corporation with respect to actions or omissions occurring prior to the time of such amendment, modification or repeal.

EIGHTH: Subject to the terms of any series of Preferred Stock, any action required or permitted to be taken by the stockholders of the Corporation must be effected at an annual or special meeting of the stockholders called in accordance with the Bylaws and may not be effected by written consent in lieu of a meeting.

NINTH: Except as otherwise required by law and subject to the terms of any series of Preferred Stock, special meetings of stockholders for any purpose or purposes may be called at any time by the majority of the Whole Board, the Chairman of the Board, the Lead Independent Director or the Chief Executive Officer of the Corporation, and may not be called by stockholders or any other person or persons. Business transacted at a special meeting of stockholders shall be limited to matters relating to the purpose or purposes stated in the notice for such meeting.

TENTH: If any provision or provisions of this Certificate of Incorporation shall be held to be invalid, illegal or unenforceable in any circumstance for any reason whatsoever: (i) the validity, legality and enforceability of such provisions in any other circumstance and the enforceability of the provisions of this Certificate of Incorporation (including, without limitation, each portion of any paragraph of this Certificate of Incorporation containing any such provision held to be invalid, illegal or unenforceable that is not itself held to be invalid, illegal or unenforceable) shall not be affected or impaired thereby and (ii) to the fullest extent possible, the provisions of this Certificate of Incorporation (including, without limitation, each such portion of any paragraph of this Certificate of Incorporation containing any such provision held to be invalid, illegal or unenforceable) shall be construed so as to permit the Corporation to protect its directors, officers, employees and agents from personal liability in respect of their good faith service or for the benefit of the Corporation to the fullest extent permitted by law.

(c) Notwithstanding the foregoing, the provisions of this Article TWELFTH will not apply to suits brought to enforce any duty created by the Exchange Act or any other claim for which the federal district courts of the United States of America are the sole and proper forum.

(d) Any person or entity purchasing or otherwise acquiring or holding any interest in shares of capital stock of the Company shall be deemed to have notice of and consented to the provisions of this Article TWELFTH.

B. Personal Jurisdiction. If any action the subject matter of which is within the scope of Section A immediately above is filed in a court located within the State of Delaware (a “Foreign Action”) in the name of any stockholder, such stockholder shall be deemed to consent to (i) the personal jurisdiction of the applicable state and federal courts located within the State of Delaware in connection with any action brought in such court to enforce Section A immediately above (an “FSC Enforcement Action”) and (ii) having service of process made upon such stockholder in any such FSC Enforcement Action by service upon such stockholder’s counsel in the Foreign Action as agent for such stockholder.

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IN WITNESS WHEREOF, the undersigned has executed this Amended and Restated Certificate of Incorporation as of this 2024.

By: _____

Name: Carmine Stengone

Title: Chief Executive Officer